

Judgment Sheet
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Civil Revision No. 29718/2025

Syed Asif Imran

Versus

Zeenat Begum etc.

J U D G M E N T

Date of hearing:	26.01.2026
Petitioner by:	Mian Muhammad Rizwan, Advocate assisted by Asad Hussain, Advocate.
Respondent No.1 by:	Mr. Muhammad Moazzam Ali, Advocate.
Respondent No.2 by:	Mr. Fahad Ahmad Siddiqui, Advocate.

MALIK WAQAR HAIDER AWAN, J:- Through this Civil Revision, petitioner has assailed the validity of judgments and decrees dated 22.02.2025 and 17.04.2025 passed by learned Senior Civil Judge (Civil Division), Hafizabad and learned Additional District Judge, Hafizabad, respectively. By virtue of the former, learned trial court declared the suit for specific performance of agreement to sell dated 18.10.2022 or in alternative recovery of Rs.10,000,000/- alongwith permanent injunction instituted by petitioner as infructuous while holding that agreement to sell executed by respondent No.1 (Zeenat Begum) in favour of respondent No.2 (Noor Muhammad) was prior in time, however, petitioner was permitted to bring a suit for recovery of sale consideration against respondent No.1. Through the latter, the appeal preferred thereagainst was dismissed with costs by learned appellate court and the findings recorded by learned trial court were validated.

2. Brief facts of the case are that two suits for specific performance of agreement to sell were filed, one by petitioner and other by respondent No.2 against respondent No.1. During proceedings of the suit titled Syed Asif Imran v. Zeenat Begum etc., on 22.12.2022, respondent No.1 appeared before learned trial court and on oath acknowledged the agreement to sell executed in favour of petitioner regarding Rs.7,200,000/- and after receiving earnest money, Rs.3,650,000/- handed over possession of the suit land to petitioner and further admitted in her statement that on that date, further received Rs.3,550,000/- and nothing was outstanding against petitioner (plaintiff) and further, he had not executed any agreement with regard to the house in question. She lastly stated that the suit of petitioner be decreed.

Likewise, on 10.06.2023, respondent No.1 again appeared before learned trial court in suit for specific performance of an agreement to sell titled Noor Muhammad v. Zeenat Begum and made statement on oath that she previously executed an agreement to sell with respondent No.2 vide agreement dated 04.10.2017 as at that time, her name was not entered in the revenue record as owner due to which the suit was withdrawn by respondent No.2 and Mutation No.11452 dated 04.11.2021 had been executed in her favour. According to respondent No.1, she executed an agreement to sell dated 04.12.2020 with an enhanced amount of Rs.7,300,000/- and received total amount in presence of witnesses and also handed over partial possession of the house to respondent No.2 and nothing was remaining against him and that agreement was executed by her through her free will and also made statement without any coercion. Scanned images of both the statements got recorded by respondent No.1 are pasted at Pages No.3 and 4 of this judgment for ready reference.

Learned trial court decreed the suit of respondent No.2 as agreement to sell in his favour was prior in time and disposed of the suit filed by the petitioner as being infructuous, however, the petitioner was permitted to bring the suit against respondent No.1 seeking recovery of sale consideration.

48

سید مصطفیٰ عثمان بیگم زینت بیگم
تعمیل فقہ مدد لا پانہ مد حکم است

22-12-22 بیان ازار زینت بیگم دختر فیض رسول زوجہ سر ازار
قوم الموان ستر ڈیوین درگاں منڈی بہاء الدین میاواں راجہ
ان بیگم المسلمہ کارڈن حافظہ آباد



(برجہ)

بیان یہ کہ مکان مدرسوہ برکات مسودا بیچ ہوا مدرسوہ سید
آصف عثمان رقم بدلہ 72 لاکھ روپے میں لے گیا اور
نزد مسودا بدلہ 35 لاکھ 50 ہزار روپے وصول کیا اور
قیفر حوالے مدرسوہ کر دیا تھا۔ اسروز مدرسوہ مسودا بدلہ
35 لاکھ 50 ہزار روپے وصول پائے ہیں۔ اب مدرسوہ کوئی
مد طالبہ مدرسوہ سے بقایا نہیں ہے۔ مدرسوہ کے علاوہ میں نے کسی
دیگر شخص سے کوئی مسودا مکان مدرسوہ پر نہ کیا ہے۔ مدرسوہ
مدرسوہ ڈگری فرمایا جاوے۔

سید ادرست بیگم

Mumtaz Hussain
Civil Judge Class
Hafizabad

22-12-2022

34301-3389406-2

زینت بیگم

زینت بیگم

ATTESTED
20 APR 2025
Staff Officer Sessions Court
Hafizabad

نور محمد بنام زینت بیگم
دعویٰ تعمیل مختص معاہدہ بیج

بیان ازاں زینت بیگم زوجہ سرفراز احمد دختر فیض رسول قوم ملک بھر 47 سال تقریباً ساکن ڈیرہ دور کاں، ڈاک خانہ
خاص میاواں رانچا تحصیل و ضلع منڈی بہاؤ الدین۔ حال مقیم اعظم گارڈن نزدیکی پی ایس سکول حافظ آباد۔

10-06-2023

شناختی کارڈ نمبر: 2-3369406-34301

بر حلف بیان کیا کہ میں مکان متدعوئیہ کی مالک و قابض تھی میں نے قبل ازیں مکان متدعوئیہ
کا سودا بیج مبلغ -/4600000 لاکھ روپے بروئے اقرار نامہ مالیتی 1200 روپے مورخہ
04-10-2017 ہمراہ مدعی نور محمد طے کیا تھا۔ لیکن چونکہ اس وقت میرے نام جو
میرے حق میں بیج نامہ درج و تصدیق ہوا تھا اس کا عمل درآمد کاغذات مال میں نہ ہوا تھا اس
وجہ سے وہ دعویٰ بوجہ راضی نامہ مدعی نے میرے کہنے پر واپس لیا تھا مابعد میرے حق میں
انتقال نمبری 11452 مورخہ 04-11-2021 کو درج و تصدیق ہو چکا ہے میں نے مدعی
کے ساتھ قیمت بڑھ جانے کی وجہ سے دوبارہ بروئے اقرار نامہ نمبری G251744 مورخہ
04-12-2020 رقم مبلغ -/7300000 لاکھ طے کی اور روپرو گواہان کل رقم وصول
کر لی ہوئی ہے مکان کا جزوی قبضہ مدعی نور محمد کو دے چکی ہوں۔ مدعی نور محمد کے ذمہ کوئی
بھی بقایا جات نہ ہیں۔ یہ اقرار نامہ میں نے مدعی سے اپنی آزاد مرضی سے بغیر کسی دباؤ سے
کیا تھا اور آج عدالت میں بیان اپنی آزاد مرضی سے بغیر کسی دباؤ کے ریکارڈ کروا رہی ہوں۔
مدعی کا دعویٰ درست ہے ڈگری فرمایا جائے۔

سن کر درست تسلیم کیا

10/6/23

ATTESTED
25 APR 2025
Staff Officer Sessions Court
Faisalabad

3. Learned counsel for the petitioner, at the very outset, while making reference to order dated 16.05.2025 passed by this Court, states that he will confine his arguments only to the extent of recovery of amount and this case does not have any effect to the extent of impugned judgments and decrees passed in favour of respondent No.2 (Noor Muhammad). Learned counsel contends that both the learned courts below erred in law and fact while ignoring the admission of respondent No.1 regarding agreement to sell as well as receiving of amount who has made statement before the Court on oath. Prays that learned trial court, instead of permitting the petitioner for filing a suit for recovery of consideration amount from respondent No.1 should have decreed the suit to the extent of return of consideration amount.

4. Conversely, learned counsel representing respondent No.2 has supported the decisions handed down by both the learned courts below whereas learned counsel for respondent No.1 has submitted that respondent No.1 had never made any statement before learned trial court and her thumb impressions and photograph were captured fraudulently as she is an illiterate lady. Both the learned counsel for respondents No.1 and 2 have argued that both the learned courts below decided the *lis* in accordance with law and as such this Civil Revision merits dismissal.

5. Heard. Record perused.

6. From perusal of the record, it transpires that respondent No.1 admitted receiving of an amount of Rs. 7,200,000/- from the petitioner and got her statement recorded in the suit titled Syed Asif Imran v. Zeenat Begum etc. on 22.12.2022. Likewise, she got her statement recorded in favour of respondent No.2 in the suit titled Noor Muhammad v. Zeenat Begum on 10.06.2023 and acknowledged receiving of an amount of Rs.7,300,000/-. During the course of arguments, learned counsel for respondent No.1 admitted her statement in favour of respondent No.2 but denied making of similar statement in favour of petitioner.

7. It is a settled principle of law that presumption of correctness is attached to the judicial proceedings. Especially, in this case, photograph of respondent No.1 was taken by the Court at the time of recording her statement in the suit titled Syed Asif Imran v. Zeenat Begum etc. Even otherwise, till date, respondent No.1 has challenged neither her statement dated 22.12.2022 made in favour of petitioner on oath before learned trial court nor the findings of learned trial court with regard to permission for bringing a suit for recovery against her.

8. Both the learned courts below failed to make realistic appraisal of the statements of respondent No.1 and did not comment upon the veracity or truthfulness of her statement rather learned trial court denied the relief to the petitioner only on the ground that agreement to sell executed in favour of respondent No.2 was prior in time and decreed the suit while holding that petitioner may bring a suit for recovery of sale consideration against respondent No.1 which is not a correct legal approach. Both the learned courts below should have given reasons for denying the petitioner for return of his admitted consideration amount by respondent No.1. So much so, learned appellate court recorded the arguments of learned counsel for respondent No.1 who did not oppose the appeal of the petitioner. Both the learned courts below were supposed to curtail the litigation amongst the parties rather than promoting multiplicity of litigation.

9. Learned trial court, if found it not plausible that suit for specific performance of agreement to sell dated 18.10.2022 filed by the petitioner could not be decreed in the light of prior agreement to sell dated 04.12.2020 executed in favour of respondent No.2, could have ordered for return of sale consideration to the petitioner, especially when the Court itself had acknowledged his right to claim the said amount.

10. Both the learned courts below failed to appreciate the somersault performed by respondent No.1. Even learned trial court did not adhere to its own record available on the case file in true perspective, especially

when the Court itself got recorded the statement of admission with regard to receiving of the amount. It is observed that civil courts are fully equipped with the provisions of CPC to meet with such situation and obviously, under Order VII Rule 7 CPC, are empowered to grant other relief in shape of return of money. For ready reference, Order VII Rule 7 CPC is reproduced below:-

*7. Relief to be specifically stated. Every plaint shall state specifically the relief which the plaintiff claims either simply or in the alternative, and **it shall not be necessary to ask for general or other relief which may always be given as the Court may think just to the same extent as if it had been asked for.** And the same rule shall apply to any relief claimed by the defendant in his written statement.*

(Emphasis supplied)

11. Although there is no express provision in the Specific Relief Act, 1877 (hereinafter referred to as the “**Act 1877**”) regarding return of sale consideration in the event of refusal of relief of specific performance of an agreement to sell, however, under Section 19 of the Act 1877, the Court is empowered to grant compensation to the party which it considers to be aggrieved due to inaction of the other party. Compensation is ordinarily awarded to the aggrieved party in addition to the relief to which it is otherwise entitled. In the present case, return of the actual amount to the petitioner stands on a higher pedestal as compared to grant of compensation. Apart from Section 22 of the Act 1877, which deals with the discretion of the Court in decreeing specific performance, the overall tenor of the Act 1877 is based on equity and for this reason, the framers of the Act consciously employed the word “may” and deliberately avoided use of the word “shall,” thereby further empowering the Court to exercise its discretion to dispense substantial justice. The Court, while eschewing technicalities, is required to exercise its discretion so as to meet the ends of justice.

12. In the attending circumstances, the observation made by the learned trial Court that the petitioner may institute a separate suit for

recovery of the sale consideration against respondent No.1 amounts to offending not only the clear legislative intent but also the purpose and object of the Act 1877.

13. In the light of above discussion, this Civil Revision is **partially allowed** and impugned judgments and decrees dated 22.02.2025 and 17.04.2025 passed by learned Senior Civil Judge (Civil Division), Hafizabad and learned Additional District Judge, Hafizabad are **modified** to the extent of petitioner and his suit is decreed with regard to return of amount of Rs.7,200,000/- as admitted by respondent No.1. Decree sheet be drawn accordingly. No order as to costs.

(MALIK WAQAR HAIDER AWAN)
JUDGE

Signed
06.02.2026

Abis Ali

APPROVED FOR REPORTING

JUDGE